

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1164

 By: Hall and Haste of the
 Senate

6 and

7 Caldwell (Trey) and Kane of
8 the House

9
10 An Act relating to the Department of Mental Health
11 and Substance Abuse Services; amending Section 79 of
12 Enrolled Senate Bill No. 1177 of the 2nd Session of
13 the 60th Oklahoma Legislature, which relates to
14 general appropriations; modifying certain date;
15 making an appropriation; stating purpose; authorizing
16 certain transfer; requiring that portions of certain
17 appropriated funds be used for certain purposes;
18 authorizing request for early transfers of certain
19 funds for specific purpose; providing an effective
20 date; and declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY Section 79 of Enrolled Senate Bill
23 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is
24 amended to read as follows:

25 There is hereby appropriated to the Department of Mental Health
26 and Substance Abuse Services from any monies not otherwise
27 appropriated from the Alcoholic Beverage Control Fund of the State
28 Treasury for the fiscal year ending ~~June 30, 2025~~ June 30, 2027, the

1 sum of Twelve Million One Hundred Eighty-five Thousand Six Hundred
2 Fifty Dollars (\$12,185,650.00) or so much thereof as may be
3 necessary to perform the duties imposed upon the Department by law.

4 SECTION 2. There is hereby appropriated to the Department of
5 Mental Health and Substance Abuse Services from any monies not
6 otherwise appropriated from the General Revenue Fund of the State
7 Treasury for the fiscal year ending June 30, 2027, the sum of One
8 Million Two Hundred Thousand Dollars (\$1,200,000.00) or so much
9 thereof as may be necessary to perform the duties imposed upon the
10 Department by law.

11 SECTION 3. From the funds appropriated to the Department of
12 Mental Health and Substance Abuse Services in Enrolled Senate Bill
13 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature and in
14 Section 2 of this act, the Department is authorized to transfer the
15 sum of Five Million Nine Hundred Sixty-nine Thousand Four Hundred
16 Sixty-three Dollars (\$5,969,463.00) to the 9-8-8 Lifeline Revolving
17 Fund, created in Enrolled Senate Bill No. 1369 of the 2nd Session of
18 the 60th Oklahoma Legislature.

19 SECTION 4. From the funds appropriated to the Department of
20 Mental Health and Substance Abuse Services in Enrolled Senate Bill
21 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the
22 sum of Three Million Dollars (\$3,000,000.00) shall be used for
23 program growth and to replace funding no longer available due to the
24 reduction of federal matching dollars.

1 SECTION 5. From the funds appropriated to the Department of
2 Mental Health and Substance Abuse Services in Enrolled Senate Bill
3 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the
4 sum of Thirty-nine Million Six Hundred Twenty Thousand Nine Hundred
5 Eleven Dollars (\$39,620,911.00) shall be used to meet the
6 obligations required in the consent decree pursuant to case number
7 23-cv-81-GKF-JFJ filed in the United States District Court for the
8 Northern District of Oklahoma.

9 SECTION 6. From the funds appropriated to the Department of
10 Mental Health and Substance Abuse Services in Enrolled Senate Bill
11 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the
12 sum of One Million Three Hundred Thousand Dollars (\$1,300,000.00)
13 shall be used to maintain services for veterans and their families.

14 SECTION 7. The Commissioner of Mental Health and Substance
15 Abuse Services may request through the Director of the Office of
16 Management and Enterprise Services the early transfer by the
17 Oklahoma Tax Commission of tax collections to the General Revenue
18 Fund for the purpose of early allocation to the Department of Mental
19 Health and Substance Abuse Services' disbursing funds to alleviate
20 cash flow problems.

21 SECTION 8. This act shall become effective July 1, 2026.

22 SECTION 9. It being immediately necessary for the preservation
23 of the public peace, health, or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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4 DIRECT TO CALENDAR.

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